existence and control of the corporation—is likewise not an unfailing guide to the presence of a corporate organization. Membership in some corporations is not transferable, while shares in many unincorporated companies may be freely alienated.

The right to sue and be sued, to hold property, receive and transmit it, in the corporate name is not exclusively a quality of the incorporated group. For instance, a recent act of the Maryland Legislature[6] grants to unincorporated associations the right to sue and be sued in any action affecting the common property, in the group name, whereas at common law it was necessary in a suit by or against an unincorporated association, to make each member of the group a party.

The attribute of unified control, also, is found in other types of groups than the corporation. In fact, it is far more effectively attained in the trust form of holding title than in a corporation.[7] Express trusts have been found by the experience of the past twenty-five years to be a convenient, safe, and unobjectionable method of co-operative ownership and management. This form of organization ensures a continuity of management and control that appeals strongly to investors in real estate,

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[6] Laws of Maryland, 1918, chapter 419. This is somewhat similar to section 215 of chapter 471 of the Acts of 1868, codified as Art. 23, sec. 415, Code of 1904, which was not included in the revised Corporation Act of 1908. The Act of 1868 provided that, "It shall be sufficient in any suit, pleading or process, either at law or in equity, or before any justice of the peace, by or against any joint stock company or association, to describe the said joint stock company or association by the name or title by which it is commonly known, or by or under which its business is transacted." For a discussion of this Act see Littleton v. Wells and McComas Council, 98 Md. 453, and Snowden v. Crown Cork and Seal Co., 114 Md. 658. The Act of 1908 revising the corporation laws of the state changes the words "joint stock company or association," which were contained in the Act of 1868, to "corporation," and it is not until the Act of 1918 mentioned above that the rights conferred upon unincorporated associations by the Act of 1868, and the interpretations given in the 98th and 114th Maryland cases are again put into the law.—See J. C. France, Principles of Corporation Law, 2nd ed. (1914), note, pp. 21, 22.

[7] H. L. Wilgus, Corporations and Express Trusts as Business Organizations, Michigan Law Review, Vol. XIII, No. 2, p. 71, December, 1914.

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